

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**202100549578CUBC: Richard N Vanderburg vs. FCA US LLC
09/03/2026 in Department 42
Motion for Attorney Fees/Costs**

Motion: Motion for Attorney Fees and Costs (Opposed)

Tentative Ruling: The motion is untimely. The case was filed in 2021. It was settled in early 2024 and dismissed on October 17, 2024 pursuant to stipulation. The stipulation provided that the Court would retain jurisdiction to decide attorney fees if the parties could not agree, but the parties did not waive the timing requirements of California Rule of Court, rule 3.1702, subdivision (c).

The motion for attorney fees was not filed until May 2026, which is untimely under the Rule.

Nonetheless, the Court will find “good cause” under subsection (d) of the Rule to consider Plaintiff’s motion. It appears that Plaintiff’s counsel intended that they would be exempt from any deadlines, and Defense counsel did not suggest until opposition that the request for attorney fees was untimely.

The court finds that Plaintiff counsel’s billing rates exceed community standards, including that of the law clerks who billed time. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Additionally, certain timekeeping records are excessive (e.g., Motion to Compel Discovery; Motion to Compel Compliance with Discovery; Notice of Non-Opposition). There is also some inconsistent evidence (e.g., six hours or four hours, spent by K. Herpers on the reply). The Court has minor concerns about the block billing and the large number of timekeepers in terms of the resulting lack of efficiency. The Court has reviewed all materials submitted by the parties, and exercising its discretion based on familiarity with appropriate billing rates, the circumstances and complexity of the case, the Court awards Plaintiff \$16,250 in attorney fees.

Plaintiff failed to file a memorandum of costs. The fact that costs are claimed under a different code section does not eliminate the need to file a memorandum of costs that provides a clear, simple outline of categorized costs from which the Court can discern why they were necessary. Claimed expenses appear to be identified at the end of an invoice; explanations are not provided. Costs for cancelled court reporters are not explained. The Court awards costs of \$2,529.94. Counsel is admonished to submit a memorandum of costs going forward that spells out any costs and identifies what the costs are for.

The total award of fees and costs is \$18,779.94. Plaintiff to give notice.